

supported by the weight of the evidence, or by substantial evidence in light of the whole record, depending on whether or not review is de novo.

In the instant matter, the court finds that, though there is no notice to Respondent of this Petition, this court, given its ultimate ruling, finds no prejudice in addressing the Petition on its merits.

Turning the facts at issue, namely, the exhibits attached to the Petition, the statement and police report show that on 12/27/25, the officer found Petitioner trapped in an overturned vehicle. Petitioner was the sole occupant, possessed a strong odor of alcohol, had bloodshot and water eyes, and the officer observed four open containers of alcohol inside the vehicle (of high alcoholic content per volume).

Officer provided the chemical test admonition to the Petitioner, and the Petitioner remained silent.

The officer obtained blood draw warrant, and a phlebotomist withdrew blood samples.

Assuming that this court is employing an independent review in deciding whether or not there was an abuse of discretion, this court first finds that the findings are supported by the weight of the evidence. This evidence, as provided in the exhibits by the Petitioner, clearly shows that the Petitioner had objective symptoms of driving under the influence of alcohol, and that he refused to submit to a chemical test.

Next, in addressing the purported claim that Respondent conducted the hearing, or admitted evidence, improperly, because they did not call any witnesses at the hearing, this court is not aware of any authority prohibiting such action. The Petitioner certainly cites to no authority to support this argument.

Thus, this court finds that Respondent did not abuse their discretion in rendering their decision.

Disposition

Petition is denied.

Petitioner to file Order and serve copy of Order on Respondent.

Courtroom Clerk's Session

16. 1:30 PM CASE NUMBER: RS26-0279
CASE NAME: AGAPE ASSETS LLC VS WEST COAST AUTOMETRICS INC.
JURY TRIAL
FILED BY: AGAPE ASSETS LLC
TENTATIVE RULING: